

26STCV07966 26STCV07966

County: los-angeles

Division: Civil Law and Motion

Department: 11

Hearing date: 2026-08-21

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C11%2C08%2F21%2F2026

Source SHA-256: f7dc97b92eb67859fb935561695928dbd97d4285da77b3ae73b001879aadca82

Case Number: 26STCV07966 Hearing Date: August 21, 2026 Dept: 11

Barrales (26STCV07966)

Tentative Ruling Re: Demurrer

Date: 8/21/26

Time: 1:45 pm

Moving

Party: Quest Nutrition, LLC

("Quest" or "Defendant")

Opposing

Party: TinaMarie Barrales

("Plaintiff")

Department: 11

Judge: Bruce G. Iwasaki

TENTATIVE RULING

Defendant's request for judicial notice is granted

as to exhibits 1 through 11, 13. The

exhibits are court records and documents submitted to executive agencies. The Court will judicially notice the exhibits' existence.

Defendant's demurrer is overruled.

BACKGROUND

This is a putative class action. Quest sells protein shakes and milkshakes. Plaintiff alleges that the shakes and milkshakes contain lead in excess of Proposition 65's safe-harbor level and that Quest fails to provide the warning required under Proposition 65.

Here, Quest demurs to the first cause of action for violation of the Unfair Competition Law ("UCL") and the second cause of action for violation of Proposition 65.[1]

APPLICABLE LAW

When considering demurrers, courts read the allegations liberally and in context, and "treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) It is error "to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

DISCUSSION

First Cause of Action – UCL

Defendant insists that the UCL claim must be dismissed because the Proposition 65 claim is defective. (See Demurrer, p.

19 [arguing that the UCL claim rises and falls with the Proposition 65 claim].)

The
demurrer is overruled. As the Court
explains next, the Proposition 65 claim survives.

Second Cause of Action – Proposition 65

In
2003, a consent judgment was entered in a case called Edgerton v. Conopco,
Inc. (BC262906). (See
Defendant's Request for Judicial Notice ("RJN"), Ex. 1 [attaching consent
judgment].) In part, Edgerton involved
claims against Atkins Nutritionals, Inc. ("Atkins") concerning lead in "Atkins
Products." (See id. at Ex. 1, p.
2.) The consent judgment establishes
injunctive relief applicable to the "Atkins Products." (See id. at Ex. 1, § 3; see also Demurrer,
pp. 10-13.)

Defendant
makes two arguments. First, Defendant contends
the second cause of action is barred by res judicata because of the consent
judgment. Defendant states that, in
2019, Atkins purchased Quest and that the Quest shakes and milkshakes qualify
as "Atkins Products." (See Demurrer,
pp. 10, 13-18 [claiming (1) Edgerton and Plaintiff's case regard the
same lead-in-shakes issue, (2) the consent judgment is a final judgment, (3)
the Edgerton plaintiff and Plaintiff are in privity, and (4) the date of
the consent judgment does not bear on the outcome].) In its Reply, Defendant also
argues that (1) the consent judgment applies to future products, (2) Quest
products are sold by or on behalf of Atkins, (3) the consent judgment's lease
applies to later-acquired subsidiaries like Quest, (4) "Plaintiff admits that
she has not alleged" a violation of the consent judgment, and (5) "public
policy supports the application of res judicata", bolding and capitalizing in
title deleted. (Reply pp. 6-13.)

Second,
Defendant contends Plaintiff fails to allege a violation of the consent
judgment. (See Demurrer, pp.
18-19; see also Reply, p. 13.)

Plaintiff

concedes the second argument. (See Opposition, p. 13 [“Plaintiff does not allege that Quest breached the Edgerton judgment, and she does not seek to enforce or modify that judgment’s terms. She brings an independent Proposition 65 claim concerning different products and exposures never adjudicated in Edgerton.”].)

As

to the first argument, Plaintiff claims:

*

The consent judgment does not cover the Quest shakes and milkshakes. (See Opposition, pp. 7-10.)

*

Defendant fails to demonstrate that the lead in the Quest shakes and milkshakes meets the consent judgment’s definition of “naturally occurring.” (See id. at pp. 10-13.)

*

Section 8 of the consent judgment does not apply. (See id. at p. 13 [“Section 8 governs disputes over a settling defendant’s compliance with the Consent Judgment’s own injunctive terms, that is, claims that a defendant violated the Best Practices or specifications the judgment itself imposed. RJN Ex. 1, § 8. Plaintiff does not allege that Quest breached the Edgerton judgment, and she does not seek to enforce or modify that judgment’s terms. She brings an independent Proposition 65 claim concerning different products and exposures never adjudicated in Edgerton. A plaintiff who is not attempting to enforce a prior judgment has no occasion to invoke that judgment’s internal enforcement procedure.”].)

*

“Section 6.1 limits the released claims to those arising from defendants’ products ‘up through the date of entry of this Consent Judgment.’” (Id. at p. 13 [“Because Plaintiff’s claims arise from exposures occurring more than twenty years later, the release itself does not encompass them.”]; see also id. at p. 14.)

The

Court turns to the law.

The

Court of Appeal has explained when a prior judgment has a res judicata effect on a later action:

[a] prior judgment is not res judicata on a subsequent action unless three elements are satisfied: “1) the issues decided in the prior adjudication are identical with those presented in the later action; 2) there was a final judgment on the merits in the prior action; and 3) the party against whom the plea is raised was a party or was in privity with a party to the prior adjudication. [Citation.] Even if these threshold requirements are established, res judicata will not be applied ‘if injustice would result or if the public interest requires that relitigation not be foreclosed.’”

(Consumer Advocacy Group, Inc. v. ExxonMobil Corp. (2008) 168 Cal.App.4th 675, 685-686.)

Plaintiff does not contest the second and third elements. (See Opposition, p. 7 [“Plaintiff does not dispute that the Edgerton consent judgment is a final judgment entitled to ordinary preclusive effect.”]; see also *ibid.* [“Plaintiff need not dispute, for purposes of this demurrer, that Proposition 65 private enforcers act in a sufficiently representative capacity to satisfy the privity requirement.”].)

To analyze the first element, the Court must consider the consent judgment’s language.

Section 1.2 defines “Atkins Products” as “all ready to drink shakes, snack bars, confectionary bars, meal replacement bars, nutritional bars, and powders made or sold by or on behalf of Atkins.” (Defendant’s RJN, Ex. 1, § 1.2, emphasis added.)

Section 1.6 states: “Collectively all products of Defendants subject to this Consent Judgment shall be known as the ‘Products.’ ‘Products’ also shall include future similar Products which are sold by or on behalf of any Defendant to California consumers after the date of entry of this Consent Judgment.” (*Id.* at Ex. 1, § 1.6, emphasis added.)

Section

9 extends the consent judgment's reach to "the Parties, their divisions, subdivisions, subsidiaries, affiliates, successors, predecessors and assigns, and the directors, officers, employees, counsel, and agents of each of them[.]" (Id. at Ex. 1, § 9, emphasis added.)

Two

questions stand out. Do the Quest shakes and milkshakes constitute "future similar Products . . . sold by or on behalf of" Atkins? (Defendant's RJN, Ex. 1, § 1.6.) And is Quest a "division[], subdivision[], subsidiar[y], [or] affiliate[]" of Atkins? (Id. at Ex. 1, § 9.)

On

balance, the Court finds that the questions cannot be answered at the demurrer stage because they raise factual issues.

Numerous factors buttress this conclusion:

*

One, the consent judgment is dated December 19, 2003. (See id. at Ex. 1, pp. 3, 18.)

*

Two, Atkins's parent company, The Simply Good Foods Co., allegedly bought Quest approximately 16 years later in 2019. (See Complaint, ¶ 13; see also Defendant's RJN, Ex. 4; Opposition, p. 8.)

* Three, Atkins allegedly changed its name to "Simply Good Foods USA, Inc." in 2020. (See Demurrer, p. 10; see also Defendant's RJN, Ex. 9.)

* Four, the complaint states that Plaintiff purchased the Quest shakes and milkshakes in 2023 through September 2025. (See Complaint, ¶ 18.)

* Five, at most, the Court can only judicially notice the existence of the acquisition documents, not the truth of the contents. (See Opposition, pp. 9-10.)

* Six, per the complaint, "Quest operates as a brand and business unit distinct from [Atkins], markets its products under the Quest brand, and does not manufacture,

distribute, or sell any product under the Atkins brand.” (Complaint, ¶ 13, emphasis added.)

* Seven, Plaintiff represents that (1)

the packaging of the Quest shakes and milkshakes “identifies them as ‘distributed by Quest Nutrition, LLC,’ directs consumers to ‘questnutrition.com,’ and bears the copyright notice ‘© 2023 Quest Nutrition, LLC[,]’” and (2) “[n]either the packaging nor Quest’s website identifies Atkins or states that the products are made or sold by or on behalf of Atkins.”

(Opposition, p. 8 n.1.)

* Eight, the allegations and judicially

noticeable materials do not show satisfaction of the consent judgment’s elaborate injunction protocol vis-à-vis the Quest shakes and milkshakes. (See id. at pp. 10-13; see also Defendant’s RJN, Ex. 1, §§ 3-3.1(h).)

* Nine, the consent judgment’s release

provision “appl[ies] up through the date of entry of” the consent judgment and, thus, does not encompass Plaintiff’s claims.

(Defendant’s RJN, Ex. 1, § 6.1.)

The Court must have evidence to

resolve the issues raised here; res judicata cannot be established on the pleadings.

The demurrer is overruled.

Non-Vanilla Shakes

and Milkshakes

Defendant asserts that Plaintiff fails

to allege enough facts to state claims pertaining to non-Vanilla shakes and milkshakes. (See Demurrer, pp. 19-20.)

The

argument amounts to an improper partial demurrer.

Quest’s

demurrer is overruled.

[1] The UCL is Business and Professions
Code section 17200. Proposition 65 is
Health and Safety Code section 25249.5.

.....

Barrales (26STCV07966)

..

Tentative Ruling Re: Motion
to Strike

Date: 8/21/26

Time: 1:45 pm

Moving

Party: Quest Nutrition, LLC
("Quest" or "Defendant")

Opposing

Party: TinaMarie Barrales
("Plaintiff")

Department: 11

Judge: Bruce G. Iwasaki

TENTATIVE RULING

Defendant's motion to strike is denied.

BACKGROUND

This

is a putative class action. Quest sells
protein shakes and milkshakes. Plaintiff

alleges that the shakes and milkshakes contain lead in excess of Proposition 65's safe-harbor level and that Quest fails to provide the warning required under Proposition 65.

Here,

Quest moves to strike (1) the complaint's references to non-vanilla shakes and milkshakes, and (2) the word "any" on page 4, lines 18 and 21.

APPLICABLE

LAW

"Motions

to strike can be used to reach defects in or objections to pleadings that are not challengeable by demurrer." (Weil & Brown, Cal. Practice Guide: Civ. Procedure Before Trial (The Rutter Group June 2023) ¶ 7:156.) "Complaints, cross-complaints, answers and demurrers are all subject to a motion to strike [citation]." (Ibid.) "Moreover, a motion to strike can be used to attack the entire pleading, or any part thereof – i.e., even single words or phrases (unlike demurrers)." (Ibid.)

The

motion can be used to strike "any 'irrelevant, false or improper matter inserted in any pleading'" or "any pleading or part thereof 'not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.'" (Id. at ¶ 7:167, emphasis in original.)

DISCUSSION

Non-Vanilla

Shakes and Milkshakes

Defendant contends:

Plaintiff alleges

that "the Quest Products contain lead in amounts that expose consumers to at or above the 0.5 microgram safe harbor [Maximum Allowable Dose Level]..." (Compl. ¶4.) This sweeping assertion encompasses seven distinct product varieties of shakes (Compl. ¶1), yet Plaintiff provides test results for only two: Quest Protein

Shake (Vanilla) at 0.002 “mcg/serv.”, and Quest Protein Milkshake (Vanilla) at .007 “mcg/serv.”, and related alleged translations of these measurements to “Daily Lead Intake”. (Compl. ¶15.)

These two results cannot and do not support any inference about the five untested products. The tested products share the same vanilla flavor yet yield significantly different lead levels. Products with different flavors and therefore different formulations—Chocolate, Salted Caramel, Coffee, and Strawberry—have even less in common with the tested vanilla varieties. If lead levels allegedly vary significantly between two vanilla products made by the same manufacturer, the results tell the Court nothing about what lead levels exist in products with different ingredients and different flavorings. Two data points for vanilla products provide no meaningful information whatsoever about lead content in five untested non-vanilla products. Without product-specific testing, ingredient analysis, or any factual allegation linking the untested products to the tested ones, Plaintiff’s claims regarding the non-vanilla flavors rest on nothing more than speculation.

A Proposition 65

claim is predicated on a quantitative showing that a specific product exposes consumers to a listed chemical at or above the safe harbor level. Cal. Health & Safety Code § 25249.6; 27 Cal. Code Regs. § 25805. The substantive defect is clear on the face of the Complaint: Plaintiff purports to assert claims regarding five products for which she has pleaded zero facts establishing the essential element of exposure above the MADL. Courts must disregard such speculative matter. [Rotolo v. San Jose Sports & Entm’t, LLC (2007) 151 Cal.App.4th 307, 318.]

(Motion, p. 4; see also Reply, pp. 2-6 [arguing that (1) “[w]hat makes paragraph 4 conclusory as to the non-vanilla products is not the absence of laboratory reports—it is the total absence of any factual allegation from which the Court could reasonably infer that five specific untested products, significantly different in flavor, exceed a quantitative chemical threshold[.]” (2) Bockrath v. Aldrich Chemical Co. (1999) 21 Cal.4th 71 and Jones v. ConocoPhillips Co. (2011) 198 Cal.App.4th 1187 are distinguishable, (3) “the opposition does not explain what makes paragraph 4 an ‘ultimate fact’ rather than a conclusion[.]” and (4) “Quest does not ask the Court to weigh evidence”], bolding and capitalizing in title deleted.)

Plaintiff claims:

The Complaint

identifies seven products with precision, namely Quest Protein Shakes in Vanilla, Chocolate, Salted Caramel, and Coffee varieties, and Quest Protein Milkshakes in Vanilla, Chocolate, and Strawberry varieties. Compl. ¶ 1. It collectively defines those seven identified products—and no others—as the “Quest Products.” Id. It then expressly alleges that “the Quest Products contain lead in amounts that expose consumers to at or above the 0.5 microgram safe harbor MADL” for lead when consumed according to the label instructions. Id. ¶ 4; see also id. ¶¶ 14-15. The Complaint further alleges that Quest sells those products in California without providing the Proposition 65 warning that Plaintiff contends is required. Id. ¶¶ 1, 4, 14-15.

Those allegations

supply the facts Quest says are missing. For each specifically identified product, the Complaint alleges the listed chemical, the manner of consumption, the resulting level of exposure, and the absence of a warning. Quest repeatedly asserts that Plaintiff pleaded “zero facts” establishing above MADL exposure for the non-vanilla products. Mot. to Strike at 4. To the contrary, Plaintiff alleges precisely such a factual allegation. Compl. ¶ 4. What Quest really means is that Plaintiff has not proved her case on the face of the complaint. But while Quest may dispute whether Plaintiff can ultimately prove it, it cannot plausibly contend that Plaintiff failed to plead it.

The Complaint also

details independent laboratory testing of representative products from both challenged product lines. It alleges that the testing detected lead in one product from each line and provides the resulting exposure calculations for Quest Protein Shake (Vanilla) and Quest Protein Milkshake (Vanilla). Compl. ¶¶ 14-15. But providing test results for two representative products does not negate the Complaint’s express allegation that each of the other flavors within those product lines causes exposure at or above the MADL. Quest’s contrary inference rests on an assumption that the vanilla products are uniquely susceptible to lead contamination or otherwise materially different from the other flavors in a manner relevant to lead exposure. Nothing in the Complaint supports that assumption.

Quest thus mistakes

the absence of pleaded product-specific test results for the absence of a product-specific allegation. They are not the same. The Complaint directly alleges the material fact as to every product at issue. As discussed below, Plaintiff was not required to plead anything additional.

(Opposition, pp. 5-6.)

Plaintiff adds:

* She “is not required to plead the evidence supporting each factual allegation[.]” (Id. at p. 6, ~~bolding and capitalizing~~ deleted; see also id. at p. 7.)

* “The two reported test results do not contradict the allegations concerning the remaining products[.]” (Id. at p. 7, ~~bolding and capitalizing~~ deleted; see also id. at p. 8.)

The motion to strike is denied. Plaintiff is not obligated to allege facts showing test results for each product.

It is enough that she identifies the specific products and states that each has a lead level above the permissible amount. (See, e.g., Complaint, ¶¶ 1-5, 55-64.) The Court finds that the allegations suffice to put Defendant on notice. Further details should be fleshed out via discovery.[1]

The Word “Any”

The word “any” appears in paragraph 21, which states: “Plaintiff would not have purchased any Quest Product or would have paid less for them, if she knew that, when consuming the Quest Products according to the label instructions, she would be exposed to lead at levels that exceed the MADL safe harbor level.” (Id. at ¶ 21, *emphasis added*.)

Defendant raises two challenges:

First, the Complaint defines only “Quest Products” (plural) as a term of art encompassing the seven identified flavors. (Compl. ¶1.) The singular “Quest Product” is not a defined term anywhere in the Complaint. By using “any Quest Product” (singular, undefined)

rather than “the Quest Products” (the defined term), Plaintiff’s injury allegations are untethered from the Complaint’s own definitional framework and potentially encompass any product made by Quest—not just the seven flavors alleged in paragraph 1 and not just the two vanilla products for which test results are alleged. This imprecision extends Plaintiff’s claimed injury beyond what the factual allegations support.

Second, even

construing “any Quest Product” to refer to the defined “Quest Products,” the word “any” impermissibly extends Plaintiff’s injury allegations to products for which she has no factual support. As discussed above, Plaintiff has provided no factual basis for alleging that nonvanilla products contain lead above the MADL.

(Motion, pp. 5-6, emphasis added; see also Reply, p. 6 [“Quest’s point remains: ‘Quest Product’ (singular) is not the defined term. ‘Quest Products’ (plural) is. The use of an undefined singular, modified by ‘any,’ creates an imprecision that extends the injury allegations beyond the defined products. At minimum, the phrase warrants clarification.”].)

The first argument is unavailing. It depends on an unreasonable, narrow reading of the complaint. At this stage, the Court interprets the pleadings broadly. The Court finds that the allegations adequately identify the products. (See, e.g., Complaint, ¶¶ 1-5, 18-27.)

The second argument also fails. It is a rehash of the unpersuasive “challenge to the non-vanilla products.” (Opposition, p. 11.)

The motion to strike is denied.

[1] Plaintiff is not requesting leave to amend to add another class representative. The Court offers no opinion about whether Plaintiff is typical in relation to the non-vanilla shakes and milkshakes.